

Law & Motion
Add On

24. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Defendant Desiree Denard's Motion for Summary Judgment is **granted**. Defendant shall prepare the order and file and serve notice of entry of order.

Background

Plaintiff filed this action on March 8, 2022. The operative First Amended Complaint, filed February 5, 2026, asserts causes of action for violation of Civil Code section 1708.85, invasion of privacy, and intentional infliction of emotional distress, along with a claim for punitive damages.

On January 30, 2018, Plaintiff Lavon Godfrey ("Plaintiff") sent Defendant Desiree Denard ("Defendant") a video of Godfrey masturbating via private Facebook message. (Defendant's Separate Statement of Undisputed Material Facts ("SSF") No. 1.) Plaintiff shared the video with only Denard. (SSF No. 2.)

Defendant contends that, on that same day, she shared the video with three family members, including Toni Denard, Chanee Denard, and Timoya Jones, and with no one else. (SSF Nos. 3-4; Denard Decl. ¶¶ 5-6.) This is disputed. Plaintiff contends Defendant created and used a Facebook group chat as a distribution channel that facilitated broader circulation, that this is corroborated by a third-party witness (Toni Denard), and that Defendant's disclosure was motivated by a rent-money dispute. (SSF Nos. 3-4 and Godfrey's Response.) Plaintiff's response to SSF No. 3 does not dispute that Defendant shared the video with the three named family members; rather, it disputes whether dissemination was limited to that group.

On February 3, 2018, Plaintiff texted Breyahanna Roger stating that she had sent the video to Denard, that she had instructed Defendant to delete it, and that Defendant had shared it with Chanee Denard and another family member. Plaintiff wrote that she intended to "send my niece to jail" and sue. (SSF No. 5.) On February 16, 2018, Oakland comedian Jerry Law was already discussing the video. (SSF No. 6.) On April 14, 2018, Plaintiff publicly reposted a comment attributing the video's spread to Chanee Denard and identifying "Lucky Dollaz" (Jerry Law) as a further distributor. (SSF No. 7.)

Plaintiff requested an apology from Jerry Law after learning the video had been shared, "as part of an

effort to address harm caused by the nonconsensual distribution of intimate material." (SSF No. 17.) On May 30, 2018, Plaintiff applied to register the trademark "Lucky Dollaz" after Jerry Law refused to apologize for posting the video in a chat with approximately 8,000 members. (SSF Nos. 8-9.)

On June 4, 2018, Plaintiff posted an Instagram video publicly describing how she "punished" Jerry Law for sharing the video by applying to trademark "Lucky Dollaz," commenting that the video was "giv[en] to him by my sister that hates me," naming Mario Hodge and Jerry Law as recipients. (SSF No. 10.) On August 23, 2019, Plaintiff posted a YouTube video referencing "revenge porn and cyber bullying" by Mario Hodge and Jerry Law, narrated in cartoon form in her own voice: "My own family did this to me. My niece Desiree Denard and my sister Chane Denard gave them the video of me." (SSF No. 11.) She posted a second video on September 18, 2019, again referencing the dissemination. (SSF No. 12.) On March 14, 2020, Godfrey posted a further video naming both Chane Denard and Desiree Denard by name and hashtag as having given the video to Mario Hodge and Jerry Law. (SSF No. 13.) On or around November 24, 2020, Plaintiff gave a recorded interview describing how she sent the video to Defendant, how Mario Hodge and Jerry Law obtained and further shared it, and her subsequent efforts to "punish" Jerry Law. (SSF No. 14.)

Defendant asserts as a material fact that Plaintiff does not remember the specific date she learned the video was shared with persons other than Denard. (SSF No. 16.) Plaintiff disputes this, contending in her response that her awareness developed gradually due to Defendant's alleged denial that she had shared the video, Plaintiff's documented mental health condition, and confirmation that Plaintiff later received from a third party (Jakita Guster), on or about March 1, 2021, that Defendant had shared the video with her as well. (SSF No. 16 and Godfrey's response.)

Plaintiff contends her claims are timely under several tolling theories including delayed discovery, mental incapacity, fraudulent concealment, and COVID-19 emergency tolling.

I. Legal Standard

A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment has the initial burden of showing either that one or more elements of the cause of action cannot be established or that there is a complete defense thereto. (Code Civ. Proc., § 437c, subds. (o), (p)(2); *Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768 (Saelzler).) If the initial burden is met, the burden shifts to the plaintiff to show the existence of a triable issue of fact with respect to that cause of action or defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Saelzler*, at p. 768.)

II. Preliminary Matters

On April 13, 2026, Plaintiff filed two briefs in opposition to the motion: a thirteen-page "Opposition to Defendant Desiree Denard's Motion for Summary Judgment" (the "Opposition") and a nine-page "Memorandum of Points and Authorities in Opposition to Defendant Desiree Denard's Motion for Summary Judgment" (the "Memorandum"). The proof of service accompanying these filings does not clearly indicate that both briefs were served on Defendant. Defendant did not raise this as an objection in her reply, however, so the Court considers both.

In her response to Defendant's separate statement of material facts, Plaintiff responded to each of Defendant's numbered facts, but did not separately set forth the additional material facts she contends support her tolling theories, with citation to supporting evidence for each, as subdivision (b)(3) requires. Rule of Court 3.1350(f)(3) further requires that "[c]itation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." (Cal. Rules of Court, rule 3.1350(f)(3).) Plaintiff's incapacity theory in particular appears within argumentative responses to Defendant's Fact No. 16 and within a declaration that cites Exhibits J, K, and L in their entirety, without reference to specific page or line numbers, placing on the Court the burden of reviewing each exhibit in full to locate whatever portions might support plaintiff's theory. While the ordinarily preferred remedy for a defective separate statement is to permit the opposing party an opportunity to cure (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1211), that remedy is unwarranted here because, as set forth below, Plaintiff's incapacity theory fails on the merits even considering the underlying evidence in full, and a cure of the citation defect alone would not change the outcome.

On June 1, 2026, Plaintiff filed a supplemental brief entitled "Response to Defendant's Reply in Support of Summary Judgment." The Code of Civil Procedure makes no provision for such a filing. Considering the brief and the arguments raised in it would deprive Defendant of a fair opportunity to respond. The Court disregards the brief. (See *City of Arcadia v. State Water Resources Control Bd.* (2010) 191 Cal.App.4th 156, 180, as modified on denial of reh'g [Jan. 20, 2011].)

III. Statutes of Limitation and Accrual

An action for violation of the right of privacy or for intentional infliction of emotional distress must be commenced within two years of accrual. (Code Civ. Proc., § 335.1.) An action under Civil Code section 1708.85 must be commenced within three years of accrual. (Code Civ. Proc., § 338(a).) A claim generally accrues, and the applicable limitations period begins to run, "when the cause of action is complete with all of its elements." (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397.) An exception to this rule is the discovery rule, which "postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." (*Ibid.*) Discovery occurs when the plaintiff "at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof — when, simply put, he at least 'suspects . . . that someone has done something wrong' to him." (*Id.* at pp. 397-398.) The plaintiff need not know the specific facts needed to establish the cause of action; it is enough that the plaintiff has notice or information of circumstances that would put a reasonable person on inquiry. (*Id.* at p. 398.) "So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

The undisputed evidence shows Plaintiff had actual knowledge sufficient to trigger accrual no later than February 3, 2018. On that date, Plaintiff texted Breyahanna Roger stating that she had sent the video to Denard, that she had instructed Defendant to delete it, that Defendant had shared it with Chanee Denard and another family member, and that she intended to "send my niece to jail" and sue. (SSF No. 5.) This is not a case where Plaintiff's suspicion was vague because, by her own account, she suspected wrongdoing, identified the person responsible, and stated an intent to pursue legal action, all on the same day. Plaintiff publicly identified Chanee Denard and Jerry Law as further distributors

by April 2018 (SSF No. 7), filed a trademark application in response to Jerry Law's refusal to apologize in May 2018 (SSF Nos. 8-9), and posted a series of public videos between June 2018 and March 2020 describing the dissemination in increasing detail, including one in which she named both Defendant and Chanee Denard by name and hashtag as having given the video to Mario Hodge and Jerry Law. (SSF Nos. 10-13.)

Based on the evidence presented, Plaintiff's claims accrued no later than February 3, 2018. Thus, the two-year limitations period for her privacy and IIED causes of action expired February 3, 2020 and the three-year period for her Civil Code section 1708.85 cause of action expired February 3, 2021. As Plaintiff did not file this action until March 8, 2022, her claims are time barred unless a tolling doctrine applies.

IV. Tolling Theories

A. Fraudulent Concealment

Fraudulent concealment tolls the statute of limitations only while the plaintiff's claim remains undiscovered because of the defendant's concealment, or until reasonable diligence would have uncovered it. (*Bernson v. Browning-Ferris Industries* (1994) 7 Cal.4th 926, 931.) Plaintiff asserts that Denard's denials, when asked directly whether she had shared the video, concealed Denard's role and prevented Plaintiff from discovering her cause of action sooner.

Plaintiff does not dispute that by February 3, 2018, she knew Defendant had shared the video, identified Denard by name as responsible, and stated her intent to pursue legal action. (SSF No. 5.) Her opposition instead argues that Defendant's denials that she had shared the video "prevented Plaintiff from reliably confirming the source" of the dissemination until March 1, 2021, when Jakita Guster told her Defendant had sent the video to her as well. (Opposition, p. 2, lines 13-17..) This argument does not hold together. Plaintiff's own February 3, 2018 text already states, as fact, that Defendant shared the video. It is also undisputed that Plaintiff sent the video to Defendant only (SSF No. 2), so Defendant was necessarily the source of any further dissemination. At most, whatever confirmation Plaintiff says she got from Guster in 2021 goes to how certain she was, not to when she discovered her claim.

Because Plaintiff knew Denard's role before any of the denials she now points to, and because the later "confirmation" she describes goes only to certainty, fraudulent concealment does not toll the statute of limitations here.

B. Mental Incapacity Under Code of Civil Procedure § 352

Plaintiff argues her claims were tolled under California Code of Civil Procedure section 352 due to a mental health related disability.

It is a "firmly established rule that 'a litigant who relies on facts in order to avoid the bar of the statute of limitations bears the burden of proving such facts . . . ' [Citation.]" (*Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 106; see also *Trantafello v. Med. Ctr. of Tarzana* (1986) 182 Cal. App. 3d 315, 317.) Since the undisputed material facts establish that the statutes of limitation bar Plaintiff's

claims, Plaintiff has the burden of raising a triable issue of fact as to whether the statutes of limitations are tolled by reason of mental incapacity under Code of Civil Procedure section 352.

Section 352(a) states that if a person entitled to bring an action "is, at the time the cause of action accrued . . . lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action." (Cal. Civ. Proc. Code § 352(a).) To invoke tolling under Section 352(a), a plaintiff must show that he was "incapable of caring for [their] property or transacting business or understanding the nature or effects of [their] acts." *Alcott Rehab. Hosp. v. Superior Ct.* (2001) 93 Cal. App. 4th 94, 101.) The key inquiry is whether the person bringing the action was "sufficiently aware of the nature or effects of [their] acts to be able to comprehend such business transactions as the hiring of an attorney and the instigation of a legal action." (*Hsu v. Mt. Zion Hosp.* (1968) 259 Cal. App. 2d 562, 575.) "Moreover, incapacity must exist at the time the claims accrue, and tolling lasts only until the plaintiff regains capacity." (*Id.* at 573.)

Plaintiff relies on five principal sources of evidence to support the application of tolling here: (1) a February 5, 2026 declaration of Mark Gross, an Associate Clinical Social Worker at Eden Adult Community Center (Declaration of Lavon Godfrey in Opposition to Motion for Summary Judgment ("Godfrey Decl."), Exh. K); (2) a November 5, 2024 letter from Gross describing Godfrey's treatment history (Godfrey Decl., Exh. K); (3) two letters from Dr. Giridhar Reddy of Eden Adult Community Support Center (Godfrey Decl., Exh. J); (4) a discharge summary from a November 2020 psychiatric hospitalization at Sutter Health (Godfrey Decl., Exh. L); and (5) statements in her own declaration.

In his declaration prepared for this litigation, Gross states he has provided psychotherapy services to Plaintiff "since approximately 2018," and that he has treated her on a regular basis since, including during periods of significant psychiatric instability. (Gross Decl. ¶ 2.) He states that at the outset of treatment, Plaintiff "presented with a significant psychiatric history, including prior severe trauma, ongoing mental health treatment, and residual effects of earlier psychological injury." (*Id.* ¶ 4.) He states that throughout treatment, Plaintiff "consistently reported and described the nonconsensual dissemination of an intimate video involving her, as well as the resulting harm, humiliation, fear, and ongoing emotional distress." (*Id.* ¶ 5.) He states that "from two years following the nonconsensual dissemination of the intimate video," he observed a "marked and persistent deterioration" in her mental health. (*Id.* ¶ 6.) He describes her symptoms (*id.* ¶ 7), states she experienced multiple psychiatric crises requiring hospitalization (*id.* ¶ 8), and states that the trauma was "a substantial contributing factor" to her increased treatment needs over time (*id.* ¶ 12). He states that, "based on [his] direct clinical observations from 2018 forward," Plaintiff "was not functioning at a level that would reasonably allow her to effectively initiate, manage, or navigate complex tasks such as legal proceedings, self-advocacy, or decision-making related to her personal or legal interests." (*Id.* ¶ 11.) He states that the harm he observed "has been enduring rather than transient" and that Plaintiff "continues to experience" symptoms as of the date of his declaration. (*Id.* ¶ 13.)

In a letter dated November 5, 2024 Gross letter states that Plaintiff has attended treatment at Eden since May 2018, and describes her diagnoses, a 2016 suicide attempt, and periods of psychiatric hospitalization. It states that during these periods of decompensation, her symptoms "sabotaged her ability *at the time* to deal with court procedures."

Two letters from Dr. Giridhar Reddy of Eden Adult Community Support Center address Plaintiff's

condition. The August 21, 2025 letter states that Plaintiff "has a severe psychiatric illness" and has received medication management and counseling at Eden "since 2018," and that she has reported an increase in the intensity of her depression, panic attacks, and mood swings "because of revenge porn that was inflicted on her." The letter states that "at the time of this incident, she reports she was in severe mental distress and not competent to take any action to protect herself." The September 30, 2024 letter states that Plaintiff has been in treatment at Eden "since 2018," that her "medical condition had its onset around 2016," and that, due to her condition and her medications, she "experiences memory deficits and has difficulty recollecting events from her past."

The Sutter Health discharge record documents a psychiatric hospitalization from November 4 to November 6, 2020. The contemporaneous mental status examination found Plaintiff oriented and alert, with judgment assessed as fair and a "clear and logical thought process," improving to fair insight by discharge.

Plaintiff's own declaration states only that she has "experienced significant mental health challenges, including conditions that affect [her] memory and ability to process traumatic events" (Godfrey Decl. ¶ 15), that "these conditions are documented in [her] medical and psychiatric records" (*id.* ¶ 16), and that "as a result," she "did not immediately understand or confirm the full extent of the video's distribution" (*id.* ¶ 17).

This evidence is not sufficient to raise a triable issue of fact that Plaintiff lacked the legal capacity to make decisions at the time her claims accrued, or at any ascertainable point after.

As discussed above, Plaintiff's claims accrued on February 3, 2018. Gross's own November 5, 2024 letter states that her treatment at Eden did not begin until May 2018, three months later. Neither Gross nor Dr. Reddy treated her when her claims accrued, so neither has personal knowledge of her condition on that date. Dr. Reddy's September 30, 2024 letter places the onset of her condition "around 2016," which predates her Eden treatment by two years and therefore rests on history she reported rather than on anything he observed. The Sutter Health hospitalization occurred in November 2020, nearly three years after accrual.

Paragraph 11 of the Gross declaration is the only statement in this record offered as Gross's own opinion on legal capacity, and it does not meet the standard. Being unable to "effectively initiate, manage, or navigate complex tasks such as legal proceedings" is not the same thing as being unable to understand the nature or effects of one's acts, or to comprehend hiring an attorney and/or instigating a lawsuit. Liberal construction requires resolving genuine ambiguity in Plaintiff's favor, but it does not require the Court to read "not effectively able to" as "unable to." Nor does paragraph 11 supply any facts, tied to any date, explaining what this impairment looked like in practice. Moreover, because Gross's treatment began in May 2018, his "direct clinical observations from 2018 forward" necessarily begin three months after accrual and cannot supply evidence of Plaintiff's capacity on February 3, 2018. Paragraph 13 states that the harm Gross observed "has been enduring rather than transient" and Plaintiff "continues to experience" symptoms as of the date of his declaration. Tolling under section 352 lasts only until the plaintiff regains capacity, which means the statute needs some point at which the disability lifted. A condition Gross describes as still unresolved years after Plaintiff filed this action in March 2022 does not supply that point, and does not explain how she managed to file suit at

that time notwithstanding the condition he describes as ongoing.

The Gross letter's statement that Plaintiff's symptoms "sabotaged her ability at the time to deal with court procedures" is tied specifically to "periods of decompensation" requiring psychiatric hospitalization, not to a continuous or ongoing inability to understand or act on her rights. That confines whatever impairment this statement describes to discrete episodes of hospitalization but the letter does not say how many such episodes occurred, when any of them occurred, or how long any of them lasted.

The August 2025 Reddy letter says that Plaintiff was "in severe mental distress and not competent to take any action to protect herself." But this is based on Plaintiff's own report to Reddy, not his independent finding, and it is not dated. The letter ties the statement to "revenge porn that was inflicted on her" generally.

Plaintiff's declaration states that she "experienced significant mental health challenges, including conditions that affect [her] memory and ability to process traumatic events" (Godfrey Decl. ¶ 15), and that "as a result," she "did not immediately understand or confirm the full extent of the video's distribution." (*Id.* ¶ 17.) Neither statement addresses her capacity to understand her rights or to act on them.

The Court finds that Plaintiff's evidence on mental incapacity, even taken as true, doesn't meet the standard for tolling under Code of Civil Procedure section 352(a). In fact, much of the evidence points the other way. For example, Gross stated that Plaintiff "consistently reported and described" the dissemination and its harm in sessions with him (¶ 5), meaning she understood and could put into words the wrong done to her. The Sutter Health record found Plaintiff oriented and alert, with fair judgment and a "clear and logical thought process," improving further by discharge two days later. Plaintiff's own conduct during this period accords with this. The day the video was shared, she texted a specific accusation against Denard and said she intended to pursue legal action. (SSF No. 5.) She later asked Jerry Law for an apology for his role in sharing the video as part of an effort to address the harm it had caused. (SSF No. 17.) When he refused, Plaintiff didn't just post about it again, she filed a federal trademark application to claim Law's stage name, using the trademark registration process against him. (SSF Nos. 8-9.)

While the Court recognizes that a plaintiff's evidentiary submission opposing summary judgment should be liberally construed (*Saelzler, supra*, 25 Cal.4th at 768-769), the evidence Plaintiff submits in opposition to the motion is not sufficient to raise a triable issue of fact as to incapacity during the relevant period.

C. COVID-19 Emergency Tolling

Emergency Rule 9 of the California Rules of Court tolled statutes of limitations for civil claims of 180 days or less that would otherwise have expired between April 6, 2020, and October 1, 2020, providing a tolling credit of 178 days. (Cal. Rules of Court, Appen. I, Emergency rule 9(a).) That window does not cover either limitations period here. Plaintiff's two-year claims expired February 3, 2020, before the emergency tolling period began. Her three-year claim expired February 3, 2021, after it ended.

Thus, Emergency Rule 9 does not apply here. Even if it did, a 178-day credit would not make Plaintiff's claims timely.

V. Plaintiff's Republication Theory

Plaintiff's opposition also argues that Defendant is liable for the further dissemination of the video by third parties, including Chanee Denard, Jerry Law, and Mario Hodge, as a foreseeable consequence of Denard's original disclosure. It is not clear whether Plaintiff intends this argument to bear on the timeliness of her claims, and Defendant's reply does not squarely address the issue. To the extent it is relevant to timeliness, the Court addresses it briefly.

Plaintiff cites *Mitchell v. Gonzales* (1991) 54 Cal.3d 1041 for the proposition that "a defendant whose conduct is a substantial factor in setting harmful events in motion may be liable for foreseeable downstream harm." (Opposition, p. 10, lines 24-27.) *Mitchell* was a wrongful death case concerning jury instructions on causation in a negligence action. It does not address liability for a third party's republication of material. Assuming Plaintiff meant *Mitchell v. Superior Court* (1984) 37 Cal.3d 268, that case does not assist her either. A party may hold the original speaker liable for a third party's republication of a statement, even where the speaker did not republish it herself, "as long as republication should have been reasonably foreseeable by the originator." (*Schneider v. United Airlines, Inc.* (1989) 208 Cal.App.3d 71, 77; *Mitchell v. Superior Court, supra*, 37 Cal.3d at p. 281.) The Court assumes that this rule, developed in the defamation context, would extend to Plaintiff's causes of action here and would apply to the republication Plaintiff describes.

Plaintiff has not raised a triable issue as to foreseeability. Her response to Denard's Separate Statement Nos. 3-4 asserts that Chanee Denard further distributed the video to the Oakland comedy community, but offers no evidence that Denard could have foreseen this when she disclosed the video to three family members on January 30, 2018. (Code Civ. Proc., § 437c, subd. (p)(2).)

Even if foreseeability were shown, the undisputed facts establish that Plaintiff knew of this republication more than three years before she filed suit. Plaintiff knew Jerry Law was discussing the video no later than February 16, 2018. (SSF No. 6.) By May 30, 2018, she knew he had posted it in a chat with approximately 8,000 members, and she applied to register a trademark in his stage name after he refused to apologize for it. (SSF Nos. 8-9.) The record identifies no act of republication after that date. Measured from either date, both the two-year and three-year limitations periods expired before Plaintiff filed this action on March 8, 2022, and none of Plaintiff's tolling theories raises a triable issue as to any claim arising from republication.

VI. Evidentiary Objections

Plaintiff filed objections to evidence on April 13, 2026. Defendant did not file any.

Evidentiary objections must be accompanied by a proposed order that complies with the requirements set forth in California Rules of Court, rule 3.1354(c). The rule requires an objecting party to file two separate documents, the objections themselves and a separate proposed order, both in one of the approved formats set forth in the rule. (Cal. Rules of Court, rule 3.1354(b), (c).) Plaintiff's objections to the Declaration of Desiree Denard fail to comply with the rule, as Plaintiff did not submit

a proposed order as required. Accordingly, the Court is not obligated to rule on the objections based on this defect alone. (*Vineyard Spring Estates v. Superior Court* (2004) 120 Cal.App.4th 633, 642 [trial courts have a duty to rule only on evidentiary objections presented in proper format].)

In any event, the Court need rule only on those objections to evidence that are material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q); *Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 857.) None of Plaintiff's objections are material here. Accordingly, the Court declines to rule on them.

VII. Conclusion

Defendant has met her burden of showing that Plaintiff's claims are barred by the applicable statutes of limitation, and Plaintiff has not raised a triable issue of fact as to any theory of tolling. Summary judgment is **granted**.